

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

19. KYRA MCAFFEE V. MAXWELL MCAFFEE (JOINED PARTY: BRIAN AND CORRINE BUNCH)
PFL20210499

Joined Parties filed an Order to Chow Cause and Affidavit for Contempt on January 12, 2026. Petitioner and Respondent were properly served. Parties appeared on March 19, 2026 for the initial arraignment. The court appointed the office of the Public Defender to Petitioner, subject to their review and determination of eligibility.

Parties appeared on June 11, 2026, for further arraignment. The office of the Public Defender declared an overwork conflict; as such, they were thanked and relieved. The Alternate Public Defender's Office was subsequently appointed. Counsel then requested the matter be continued. The court granted the request to continue.

Upon review of the court file, the court notes the parties are scheduled to appear for a hearing on September 24, 2026, at 1:30 PM. For judicial economy, the court continues this matter to join with the hearing set for September 24, 2026, at 1:30 PM in Department 5.

All prior orders remain in full force and effect. Joined Parties are directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #19: FOR JUDICIAL ECONOMY, THE COURT CONTINUES THIS MATTER TO JOIN WITH THE HEARING SET FOR SEPTEMBER 24, 2026, AT 1:30 PM IN DEPARTMENT 5. ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT. JOINED PARTIES ARE DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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20. CODY RICHARDSON V. JENNIFER DAVIS

PFL20210489

Respondent filed a Request for Order (RFO) on May 22, 2026, requesting modification of child custody orders as well as an order to re-enroll the minor in Sierra School. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on July 10, 2026, and a review hearing on September 17th. Petitioner was served on May 27, 2026.

Petitioner filed an RFO to change venue from El Dorado County to Butte County on May 26, 2026. There is no Proof of Service for this document.

Respondent filed a request to reschedule the hearing on Petitioner's RFO on June 17, 2026. The court granted the request and directed Petitioner to properly serve Respondent with the RFO.

Both parties and the minor participated in CCRC. The parties were unable to reach any agreements. A report with recommendations was prepared on August 12, 2026, and mailed to the parties on August 13th.

Respondent filed a Responsive Declaration to Petitioner's RFO on August 31, 2026. Respondent objects to the court considering the RFO as she has still not been properly served.

Respondent filed a Reply Declaration to the CCRC report on September 3, 2026. It was served the same day. Respondent asserts there are internal inconsistencies in the CCRC report regarding the parenting plan. Respondent asserts the narrative portion of the report is correct setting forth that Petitioner shall exercise parenting time the 1st, 3rd, and 5th weekends of the month during the school year. Respondent requests the parties continue to utilize Talking Parents as the communication platform.

Petitioner has not filed a Responsive Declaration.

The court has read and considered the filings as outlined above. The court finds the recommendations as set forth in the August 12th CCRC report to be in the best interest of the minor with the following modifications. Petitioner shall have parenting time on the 1st, 3rd, and 5th weekends, with the times as set forth. The parties shall continue to utilize the Talking Parents application for all communication regarding the minor. All other recommendations are adopted as set forth.